



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 17, 2021

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202003712 regarding Deputy Chief James McCarthy, Tax No. 885671 (DADS No. 2021-23467) and Police Officer Joshua Jiminez, Tax No. 963583 (DADS No. 2021-23465)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter in its entirety and determined that the actions of Deputy Chief McCarthy and Police Officer Joshua Jiminez do not rise to the level of actionable misconduct.

Deputy Chief McCarthy and Police Officer Jiminez were faced with a hostile and violent crowd. Deputy Chief McCarthy and Police Officer Jiminez, together with other members of service present at the protest, were under a constant barrage of projectiles, which included bricks and bottles. In the midst of this intense and chaotic situation, Deputy Chief McCarthy and Police Officer Jiminez provided security to their fellow officers who were affecting a lawful arrest.

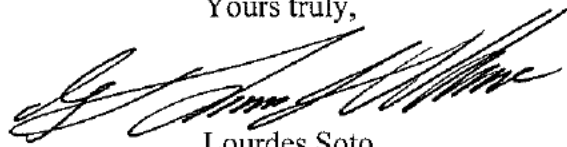
It was during this time that Deputy Chief McCarthy deployed his Oleoresin Capsicum Pepper Spray to keep back a violent crowd that was advancing upon the arresting officers. It was also during this time that Police Officer Jiminez utilized minimal force to ensure that neither he or his fellow officers were injured by a projectile that was moments earlier launched in their direction. In light of the foregoing facts, the Police Commissioner has determined that the force used by Deputy Chief McCarthy and Police Officer Jiminez does not warrant discipline.

Therefore, Deputy Chief McCarthy will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 221-07 (Use of Oleoresin Capsicum Pepper Spray Devices).

Finally, Police Officer Jiminez will receive no disciplinary action for the alleged violation of Patrol Guide Procedures 221-01 (Force Guidelines) and 221-02 (Use of Force).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'Lourdes Soto', written in a cursive style.

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office

A handwritten signature in black ink, appearing to be a stylized 'L' or 'C', written in a cursive style.